

conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)

3. Uncertainty

Defendants' notice of demurrer contends that the Cross-Complaint is uncertain under Code Civ. Proc. § 430.10(f), but Defendant does not support this contention with any argument in the memorandum of points and authorities.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. (*People v. Lim* (1941) 18 Cal. 2d 872, 883.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616.) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (*Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908.) A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).)

A demurrer for uncertainty will only be sustained where the complaint is so poorly pled that a defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616.)

The court finds that the Complaint adequately pleads factual allegations against Defendants and is not so poorly pleaded that Defendants cannot discern which issues must be admitted or denied. Thus, the demurrer for uncertainty is overruled.

4. Failure to State Sufficient Facts

As to moving Defendants, the Complaint asserts causes of action for 4) negligence and 7) unfair business practices.

a. Negligence

The elements to a cause of action for negligence are: (1) the existence of a duty, (2) breach, (3) causation, and (4) damages. (*Pellegrini v. Weiss* (2008) 165 Cal.App.4th 515, 524.)

Defendants contend that Plaintiffs have not alleged facts demonstrating that Defendants had any control over or a duty to maintain the individual unit at the Property. However, the Complaint alleges that Defendants “owned, controlled, and/or managed the PREMISES.” (Complaint, ¶ 50.) Defendants’ dispute with this allegation is an issue of fact that cannot be resolved at the demurrer stage.

Further, the Complaint alleges that Defendants acted as agents of each of the other Defendants. Generally, “[a]n allegation of agency is an allegation of ultimate fact that must be accepted as true for the purposes of ruling on a demurrer.” (*City of Indus. v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212.) Thus, the court overrules the demurrer as to this cause of action.

b. Business & Professions Code § 17200

The Unfair Competition Law codified in Business and Professions Code § 17200, prohibits any “unlawful, unfair or fraudulent business act or practice.” A homeowners association is not a “business” for purposes of the UCL where the association does not participate as a business in the commercial market and the dispute is not related to any commercial activity. (*That v. Alders Maintenance Assn.* (2012) 206 Cal.App.4th 1419, 1426.) In *Alders*, the court rejected the idea that a homeowners association could be considered a business under the UCL, where plaintiff was attempting to challenge election-related activities conducted by the HOA. (Id. at 1427[“applying the UCL to an election dispute would simply make no sense”].)

Here, however, the Complaint alleges that Defendants “are engaged in the business of renting residential premises to the public.” Defendants dispute the veracity of this statement, but the Court must accept as true the allegations properly pleaded in the Complaint

Thus, the court overrules the demurrer to this cause of action.